

Sahid Gangalal National Heart Centre Act, 2001

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
2. Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075 2076.1.2

Act No. 13 of the year 2057

An Act Made to Establish and Operate the Shahid Gangalal National Heart Centre

Preamble: Whereas it is desirable to establish and operate the Shahid Gangalal National Heart Centre to provide high-level health services required for the prevention, diagnosis, treatment, and rehabilitation of heart disease patients in an accessible manner, with the aim of perpetuating the memory of Shahid Gangalal Shrestha, to enable heart disease patients to lead a dignified human life, and to prepare necessary skilled manpower for high-level study and research relating to heart disease, by establishing the Shahid Gangalal National Heart Centre;

Therefore, in the twenty-ninth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev, Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act shall be called the "Shahid Gangalal National Heart Centre Act, 2057".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Centre" means the Shahid Gangalal National Heart Centre established pursuant to Section 3.

(b) "Committee" means the Centre Management Committee formed pursuant to Section 7.

(c) "Chairperson" means the Chairperson of the Committee.

(d) "Member" means a member of the Committee, and this term shall also include the Chairperson and the Member-Secretary of the Committee.

(e) "Executive Director" means the Executive Director appointed pursuant to Section 11.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3.

Establishment of the Centre: (1) A high-level centre named the Shahid Gangalal National Heart Centre is hereby established to provide high-level health services required for the diagnosis, treatment, and rehabilitation of heart disease patients in an accessible manner, to enable heart disease patients to lead a dignified human life, and to prepare necessary skilled manpower for high-level study and research relating to heart disease.

- (2) The Centre shall be located in Kathmandu district, and branches and units of the Centre may be established in other districts as required. 4. Centre to be an Autonomous Institution: (1) The Centre shall be an autonomous and corporate body with perpetual succession.
- (2) The Centre shall have a separate seal of its own.
- (3) The Centre may acquire, use, sell, or otherwise manage movable and immovable property like a person.
- (4) The Centre may sue and be sued in its own name like a person. 5.
6. Functions, Duties, and Powers of the Centre: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Centre shall be as follows:-
- (a) To formulate and implement or cause to be implemented necessary policies, plans, and programmes for achieving the objectives of the Centre,
 - (b) To make available high-level health services required for the prevention, diagnosis, treatment, and rehabilitation of heart disease patients in an accessible manner,
 - (c) To conduct a national heart disease prevention and control programme for the prevention of heart disease and the rehabilitation of heart disease patients,
 - (d) To prepare necessary skilled manpower for the prevention, diagnosis, treatment, and rehabilitation of heart disease patients,
 - (e) To organize and conduct programmes such as high-level study, research, survey, workshops, gatherings, conferences, seminars, etc., on matters relating to heart disease to fulfill the objectives of the Centre, and to participate in national and international gatherings, conferences, workshops, seminars, etc., related thereto,
 - (f) To maintain contact and coordination with domestic and foreign, governmental and non-governmental organizations to enhance the level of work relating to the prevention, diagnosis, and treatment of heart disease and the rehabilitation of heart disease patients, and to prepare national policies, plans, and programmes in that regard and submit them to the Government of Nepal,
 - (g) To provide technical assistance to bodies involved in the prevention, diagnosis, and treatment of heart disease and the rehabilitation of heart disease patients,
 - (h) To grant scholarships, medals, and awards in the field of prevention, diagnosis, treatment of heart disease and rehabilitation of heart disease patients,
 - (i) To fix and collect fees for various services including health services, consultation services, research services, laboratory services provided by the Centre,
 - (j) To obtain and mobilize necessary in-kind, financial, technical, and other assistance required for the Centre from the Government of Nepal, foreign governments, or national or international associations, organizations, bodies, or individuals,
 - (k) To establish, expand, and strengthen relations with domestic and foreign, governmental and non-governmental organizations relating to heart disease and exchange mutual assistance,
 - (l) To exchange specialist services relating to heart disease at the national and international level,
 - (m) To conduct mobile health services relating to heart disease as required,
 - (n) To disseminate information regarding the fight against heart disease and the utility and efficacy of health services relating to heart disease, to publish or cause to be published various materials regarding health services relating to heart disease, and to create or cause to be created public awareness,
 - (o) To develop model information and research areas in prescribed districts for the dissemination of information and research management in health services relating to heart disease,
 - (p) To develop, expand, and diversify necessary scientific equipment, laboratories, libraries, and other facilities for the Centre,
 - (q) To periodically review and evaluate plans and programmes operated by the Centre,

- (r) To periodically inform the Government of Nepal about the progress made in relation to policy decisions taken by the Centre and their implementation,
- (s) To submit the annual report of the Centre to the Government of Nepal,
- (t) To carry out or cause to be carried out other necessary works for fulfilling the objectives of the Centre.

7. Centre Management Committee: (1) For the operation, supervision, and management of the Centre by exercising all the functions, duties, and powers vested in the Centre under this Act and the rules made under this Act, a Management Committee comprising the following members shall be formed:-

- (a) Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075. Minister or Minister of State for Health and Population ? Chairperson
- (b) Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.
- (c) Member, National Planning Commission (looking after the health sector) ? Member
- (d) Secretary, Ministry of Finance or a gazetted first class officer of the Ministry of Finance designated by him/her ? Member
- (e) Secretary, Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075. Ministry of Health and Population or a gazetted first class officer of the Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075. Ministry of Health and Population designated by him/her ? Member
- (f) Three persons nominated by the Government of Nepal from amongst specialist doctors relating to heart disease ? Member

While nominating Members pursuant to this clause, two persons shall be nominated from amongst the specialist doctors working in the Centre.

- (g) One person from amongst distinguished female social workers ? Member
- (h) One person nominated by the Government of Nepal on the recommendation of the Management Committee from amongst donors ? Member
- (i) One person nominated by the Government of Nepal from amongst the heads of various medical science study institutes ? Member
- (j) One person nominated by the Government of Nepal from amongst the heads of reputed non-governmental organizations working at the national level in the field of heart disease prevention ? Member
- (k) Executive Director ? Member-Secretary

(2) The term of office of Members pursuant to clauses (f), (g), (h), (i), and (j) of sub-section (1) shall be four years, and they may be re-nominated.

(3) The Committee may, if it deems necessary, invite any expert to the meeting of the Committee as an observer.

(4) The procedure of the meeting of the Committee shall be as prescribed. 8. Termination of Membership: (1) Nominated Members of the Committee shall not remain in office under any of the following circumstances:-

- (a) Upon expiry of the term of office,
- (b) Upon resignation submitted to the Government of Nepal,
- (c) Upon death,
- (d) Upon being absent from three consecutive meetings of the Committee without any notice.

(2) If the office of any Member becomes vacant pursuant to sub-section (1), another Member shall be nominated as soon as possible for the remainder of the term.

9. Proceedings Not to be Invalidated: No proceeding of the Committee shall be invalidated by reason only of any defect in the formation of the Committee or of the vacancy in the seat of any Member. 10. Functions, Duties, and Powers of the Chairperson: The functions, duties, and powers of the Chairperson shall be as

prescribed. 11. Executive Director, Advisors, and Other Employees: (1) The Government of Nepal shall appoint an Executive Director from amongst heart disease specialists to conduct the day-to-day administration as the administrative chief of the Centre.

(2) The term of office of the Executive Director appointed pursuant to sub-section (1) shall be four years, and he/she may be re-appointed.

(3) The functions, duties, and powers of the Executive Director shall be as prescribed.

(4) The Centre may appoint technical and administrative advisors and employees as required. 12. Remuneration, Terms of Service, and Facilities: (1) The remuneration, terms of service, and facilities of the Executive Director and the advisors and employees of the Centre shall be as prescribed.

(2) A Member shall receive allowance as prescribed for participating in meetings of the Committee. 13. Fund of the Centre: (1) The Centre shall have a Fund, and the following amounts shall be deposited in that Fund:-

- (a) Grant amount received from the Government of Nepal,
- (b) Amount received from any foreign organization, government, or international organization,
- (c) Amount received from various services provided by the Centre,
- (d) Grant amount received from various individuals,
- (e) Amount received from other sources.

(2) The expenses of the Centre shall be borne from the Fund pursuant to sub-section (1).

(3) The amount received by the Centre from the Government of Nepal, foreign government, or international association, organization, or individual for a specific programme or work shall be spent only for that same programme or work.

(4) The operation of the Fund of the Centre shall be as prescribed. 14. Accounts and Audit: (1) The accounts of income and expenditure of the Centre shall be maintained as prescribed.

(2) The audit of the income and expenditure of the Centre shall be conducted by the Office of the Auditor General or by an auditor designated by that Office. 15. May Constitute Technical Committee: (1) The Committee may, as required, constitute a Technical Committee to provide necessary technical services and assistance to the Centre.

(2) The functions, duties, and powers as well as the procedure of the Technical Committee constituted pursuant to sub-section (1) shall be as determined by the Committee. 16.

May Constitute Sub-committee or Task Force: (1) The Committee may, as required, constitute a sub-committee or task force to conduct its programmes. (2) The functions, duties, and powers as well as the procedure of the sub-committee or task force constituted pursuant to sub-section (1) shall be as determined by the Committee. 17. Delegation of Powers: The Committee may, as required, delegate some of the powers conferred to it under this Act or the rules made under this Act to any Member or officer employee of the Committee. 18. Annual Report: The Committee shall prepare an annual progress report within three months from the date of expiry of the fiscal year and submit it to the Government of Nepal. 19. May Give Directions: The Government of Nepal may give directions to the Centre regarding policy matters considered necessary for implementing the objectives of this Act, and it shall be the duty of the Centre to follow such directions. 20. Contact with the Government of Nepal: If the Centre needs to contact the Government of Nepal on policy matters relating to the prevention, diagnosis, treatment of heart disease and the rehabilitation of heart disease patients, it shall do so through the Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075. Ministry of Health and Population, and on other matters, it may directly contact any ministry of the Government of Nepal or bodies under such ministry. 21. Power to Make Rules: The Committee may make necessary rules for implementing the objectives of this Act. 22. Repeal and Saving: (1) The Shahid Gangalal National Heart Centre Development Committee (Formation)

Order, 2055 is hereby repealed. (2) The rights, liabilities, and movable and immovable property standing in the name of the Committee formed under the Formation Order pursuant to sub-section (1) shall vest in the Centre established under this Act, and the acts and proceedings done by that Committee shall be deemed to have been done by this Centre.